

This project is committed to compliance with the U.S. Department of Housing and Urban Development Section 3 regulations codified at 24 CFR Part 75. The Section 3 Worker Certification Form is used to determine an individual's Section 3 status. Please review instructions that provide details on how to complete this form and properly identify a Section 3 worker and Targeted Section 3 worker.

Worker Information

Worker Name _____

Worker Street Address _____

City _____ County _____ State _____ Zip Code _____

Telephone Number _____ Email _____

Employer Name _____

Worker's Hire Date Month _____ Day _____ Year _____

Annual Income | Complete Area A or B, not both

Area A: Complete if the worker resides in one of the following Winston-Salem, NC HUD Metro FMR Area counties:
Davie County, NC; Forsyth County, NC; Stokes County, NC; Yadkin County, NC

The worker's annual income is at or below \$53,400 ☐ Yes ☐ No

Area B: Complete if the worker resides outside of the counties listed under Area A or if determining Section 3 qualification based on the look-back period. Refer to instructions to locate and enter the HUD Low Income Limit based on where the worker resides.

\$ _____ FY _____

The worker's annual income is at or below the amount entered above ☐ Yes ☐ No

Resident Status | Worker to complete this section. Leave blank if completed by the employer.

Current or former YouthBuild participant ☐ Yes ☐ No

If yes, enter last participation date: Month _____ Year _____

Current or former ASPIRE housing resident or ASPIRE Section 8-assisted housing resident ☐ Yes ☐ No

If yes, enter last resident date: Month _____ Year _____

ASPIRE Property Name: _____

Section 3 Status | Make the appropriate selection(s) based on completed entries.

☐ Not Section 3

☐ Section 3 Worker

☐ Targeted Section 3 Worker

This form was completed by ☐ Worker ☐ Employer

I affirm and hereby certify, under penalty of perjury, that the information in this document is true and accurate to the best of my knowledge and belief. **Actual/original signature required.**

Name _____

Signature _____ Date _____

SECTION 3 WORKER CERTIFICATION FORM INSTRUCTIONS

The U.S. Department of Housing and Urban Development Section 3 implementing regulations codified at 24 CFR Part 75 establish the following:

- Consistent with existing Federal, state, and local laws and regulations, contractors must make best efforts to provide employment and training opportunities generated by the project to Section 3 workers
- 25 percent or more of the total number of labor hours worked by all workers are worked by Section 3 workers
- 5 percent or more of the total number of labor hours worked by all workers are worked by Targeted Section 3 workers

The Section 3 Worker Certification Form is a self-certification document established for the expressed purpose of determining a worker's Section 3 worker and Targeted Section 3 worker status.

The Section 3 Worker Certification Form is NOT to be required as a condition of employment.

The Section 3 Worker Certification Form may be completed by the contractor or the worker.

Worker Information

NAME | Enter the worker's first and last name.

ADDRESS | Enter the worker's complete street address.

CITY, COUNTY, STATE, ZIP CODE, TELEPHONE NUMBER, EMAIL | Enter the worker's city, county, state, zip code, telephone number, and email address.

EMPLOYER NAME | Enter the name of the company that employs the worker.

HIRE DATE | Enter the month, day, and year the worker was hired by the contractor. This is the date the employer hired the worker to work for the company.

Annual Income

Complete Area A or Area B. *If form completed by the employer, the employer certifies that the worker's income is based on the calculation of what the worker's wage rate would translate to if annualized on a full-time basis [§ 75.31 (1)(iv)].*

See Determining Section 3 Qualification to locate current and past HUD low-income limits based on where the worker resides.

If the worker's annualized income is or when hired within the past five years was at or below the low-income limit established by HUD (Yes marked), the worker qualifies as a Section 3 worker.

Resident Status

For completion by the worker, leave blank if form completed by the employer. Select Yes or No. If yes is selected, the next question must be answered.

If the worker is a current YouthBuild participant or within five years of the hire date was a YouthBuild participant, the worker qualifies as a Section 3 worker AND a Targeted Section 3 worker.

If the worker is a Section 3 worker AND is a current ASPIRE resident or ASPIRE Section 8-assisted resident, or former resident within five years of the hire date, the worker also qualifies as a Targeted Section 3 worker.

Section 3 Status

Make the appropriate selection(s).

Form Completed By

Make the appropriate selection based on who completed the form.

Name, Signature, Date

An original (wet/inked) signature required. A certified e-signature is acceptable.

The name and signature should be that of the individual who completed the form.

The employer should retain the Section 3 Worker Certification Form on file for five years from the date of signature.

DETERMINING SECTION 3 QUALIFICATION

Definitions

Section 3 Worker

Any worker who currently fits or when hired within the past five years fit at least one of the following categories, as documented:

- A low- or very low-income resident (the worker's income for the previous or annualized calendar year is below the income limits established by HUD); or
- Employed by a Section 3 business concern; or
- A YouthBuild participant

Targeted Section 3 Worker

A Section 3 Worker who is:

- Employed by a Section 3 business concern; or
- Currently fits or when hired fit at least one of the following categories, as documented within the past five years:
 - A resident of ASPIRE public housing or ASPIRE Section 8-assisted housing for which the public housing financial assistance is expended; or
 - A resident of other ASPIRE public housing projects or Section 8-assisted housing managed by ASPIRE
 - A YouthBuild Participant

Look-Back Period

The definitions include the following language: "when hired within the past five years" and "as documented within the past five years"

- This timeframe is a look-back period.
- Taking advantage of the look-back period may increase the number of Section 3 workers.

If the worker has been employed with the contractor more than five years, the worker is not eligible for the look-back period examination.

Examples

Spencer — Hired March 15, 2023

- Spencer's current annualized income exceeds the HUD low-income limit based on the county where he currently lives.
- Because Spencer has been employed less than five years with the contractor, he qualifies for the look-back period examination.
- Spencer's 2023 annualized income may be examined to determine whether it was at or below HUD's 2023 low-income limit for the county where he resided in 2023.

☒ Qualifies for look-back period examination.

Maria — Hired May 17, 2024

- Maria's current annualized income exceeds the HUD low-income limit based on the county where she currently lives.
- Maria has been employed less than five years with the contractor and qualifies for the look-back period examination.
- Her 2024 annualized income exceeds HUD's 2024 low-income limit based on the county where she resided in 2024.
- However, Maria is a former YouthBuild participant — she was last a participant on May 30, 2024.

☒ She qualifies as a Section 3 worker AND a Targeted Section 3 worker because last YouthBuild participation date is within five years of her hire date.

Joshua — Hired December 12, 2020

- Joshua has been employed more than five years with the contractor.

☒ He does not qualify for the look-back period examination.

Individual Income Limit

To properly complete Area B and access HUD low-income limits, visit the link and follow the steps below.

<https://www.huduser.gov/portal/datasets/il.html>

1. Select 2026.

IMPORTANT: If determining Section 3 status based on the look-back period (see above), follow the steps for Locating HUD Low-Income Limits Prior to 2026.

2. Scroll down and select "Click Here for FY 2026 IL Documentation."

3. In the search field, enter the county and state where the worker resides. If a drop-down menu appears, be sure to make the correct selection.

4. A new page will appear. Locate the "Low (80%) Income Limits" based on one (1) "Persons in Family."

5. Enter the low-income limit on the Section 3 Worker Certification Form in the space provided.

6. Enter 2026 for "FY _____."

7. If the individual's income is at or below the amount entered, the individual is a Section 3 worker.

Locating HUD Low-Income Limits Prior to 2026

1. Select the year the worker was hired.

2. Scroll down and select "Click Here for FY IL Documentation." *The year that will appear in the "Click Here for FY . . ." selection is the year selected under Step 1.*

3. Locate and select the state where the individual resides.

4. Locate and select the county where the individual resides.

5. Select "View County Calculations."

6. Locate the "Low (80%) Income Limits" based on one (1) "Persons in Family."

7. Enter the low-income limit on the form in the space provided.

8. Enter the annual income year selected under step 1 for FY _____ on the Section 3 Worker Certification Form.

9. If the individual's income is at or below the amount identified, the individual is a Section 3 worker.